

SCHEDULE

Section 3.

ENACTMENTS REPEALED

Session and Chapter	Short title	Extent of repeal
12, 13 & 14 Geo. 6. c. 17.	The American Aid and European Payments (Financial Provisions) Act, 1949.	In section one, in subsection (1), paragraph (b). In section two, in subsection (1), the words from "and", in the first place where that word occurs, to the end of the subsection. Sections three, four and five.
14 & 15 Geo. 6. c. 8.	The European Payments Union (Financial Provisions) Act, 1950.	Sections one and two.

CHAPTER 12

Agriculture (Small Farmers) Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Schemes for grants for increasing efficiency of small farm businesses.
2. Schemes for supplementing existing grants to persons carrying on certain small farm businesses in England, Wales or Northern Ireland.
3. Schemes for grants to persons carrying on certain small farm businesses in Scotland.
4. Supplementary provisions as to schemes.
5. Revocation of approval of programme and recovery of grant.
6. Interpretation.
7. Expenses.
8. Short title.

SCHEDULE—Instruments referred to in s. 2 (1) (b).

An Act to provide for the making of grants for the purpose of increasing the efficiency of small farm businesses; and for purposes connected with the matters aforesaid.

[19th February, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Schemes for grants for increasing efficiency of small farm businesses.

1.—(1) The appropriate Minister may by a scheme or schemes made under this section with the approval of the Treasury provide for the payment of grants to any person for the time being carrying on a small farm business of any such class or description as may be specified in the scheme in connection with the carrying out of a programme for increasing the efficiency of that business, being a programme of a duration of not less than three years submitted to and approved by that Minister for the purposes of the scheme ; and any such scheme shall—

- (a) so define the classes or descriptions of farm businesses in respect of which grants may be made under the scheme as in the opinion of the appropriate Minister to secure that such grants will only be made in respect of a farm business capable of yielding an adequate return to any person carrying it on with reasonable efficiency and as a full-time occupation ;
- (b) specify the matters in respect of which grants under the scheme may be made, which may include both—
 - (i) such of any particular operations specified in the scheme as may be included in the approved programme ; and
 - (ii) the general purposes of the farm business ;
- (c) specify the rate of any such grant and the maximum period in respect of which the grant is payable, whether or not the approved programme is to be completed within that period.

(2) A scheme under this section may be a separate scheme for England and Wales or for Scotland or for Northern Ireland, or a joint scheme for the whole of the United Kingdom, or for Great Britain, or for England and Wales and Northern Ireland, or for Scotland and Northern Ireland.

Schemes for supplementing existing grants to persons carrying on certain small farm businesses in England, Wales or Northern Ireland.

2.—(1) The Minister of Agriculture, Fisheries and Food may by a scheme or schemes made under this section with the approval of the Treasury provide for the payment of grants at such rates as may be specified in the scheme by way of a supplement to any grant or contribution such as is specified in the next following subsection payable in respect of matters arising during such period not exceeding three years as may be specified in the scheme, where the grant or contribution to be supplemented falls to be made to the person for the time being carrying on a small farm business in England, Wales or Northern Ireland, being either—

- (a) a business of a class or description to which a scheme under section one of this Act for the time being applies ;
or

- (b) a business of any other class or description specified in the scheme under this section in the case of which the person aforesaid, or any previous occupier of any of the agricultural land comprised in the business, has at any time since the first day of August, nineteen hundred and fifty-three received either assistance by way of payments under any of the instruments mentioned in the Schedule to this Act or approval for a programme qualifying him for such assistance,

and not being in either case a business in respect of which payments under any scheme under the said section one are being or have been made:

Provided that no grant shall be made by virtue of paragraph (b) of this subsection by way of a supplement to any grant or contribution payable—

- (i) in the case of a grant such as is mentioned in paragraph (b) or (e) of the next following subsection, in respect of any operations commenced on or after the first day of July, nineteen hundred and sixty-two;
- (ii) in any other case, in respect of any matter arising on or after the said first day of July.

(2) The grants and contributions which may be supplemented by a scheme under this section are—

- (a) grants by virtue of the Agriculture (Ploughing Grants) Act, 1952, in respect of the ploughing up of land under grass;
- (b) grants under section fifteen of the Agriculture (Miscellaneous War Provisions) Act, 1940, towards expenditure incurred in carrying out a scheme for the cleansing or improvement of ditches;
- (c) contributions by virtue of the Agriculture (Fertilisers) Act, 1952, towards expenditure in respect of fertilisers;
- (d) contributions by virtue of section ninety-seven of the Agriculture Act, 1947, towards costs incurred in liming land;
- (e) grants by virtue of paragraph (a) of subsection (1) of section six of the Agriculture Act (Northern Ireland), 1949, for the drainage of land used or to be used for agricultural purposes.

(3) A scheme under this section may be a separate scheme for England and Wales or for Northern Ireland, or a joint scheme for England and Wales and Northern Ireland.

Schemes for grants to persons carrying on certain small farm businesses in Scotland.

3.—(1) The Secretary of State may by a scheme or schemes made under this section with the approval of the Treasury provide for the payment of grants in respect of such matters arising during such period not exceeding three years, and at such rates, as may be specified in the scheme to any person for the time being carrying on a small farm business in Scotland, not being a business in respect of which payments under any scheme under section one of this Act are being or have been made :

Provided that, except in the case of a business of a class or description to which a scheme under section one of this Act for the time being applies, no grant shall be made by virtue of this subsection in respect of any matter arising on or after the first day of July, nineteen hundred and sixty-two.

(2) A scheme under this section may provide for securing that a grant shall not be made, or shall be restricted in amount, or, if already made, may be recovered in whole or in part, if the Secretary of State is of the opinion that the matter or operation in respect of which the grant is to be or has been made has been badly carried out, or has been or is being unreasonably delayed, or is unlikely to be completed.

Supplementary provisions as to schemes.

4.—(1) A scheme under section one of this Act shall specify a period within which programmes shall be submitted to the appropriate Minister for approval, which may begin before or after the commencement of this Act, but not earlier than the first day of January, nineteen hundred and fifty-nine, and shall end not later than five years after it begins or, if it begins before the commencement of this Act, not later than five years after the commencement of this Act.

(2) Any scheme under this Act may make provision—

- (a) for limiting the classes or descriptions of farm businesses in respect of which any particular grant may be made ;
- (b) for different rates of grant, or different methods of determining the amount of the grant, according to the matters in respect of which any particular grant is payable ;
- (c) in the case of a scheme under section one or section three of this Act, for prohibiting or restricting the making of payments under the scheme in cases in which payments out of moneys provided by Parliament under any other Act, or out of moneys provided by the Parliament of Northern Ireland under any Act of that Parliament, are available in respect of the same matters ;
- (d) in the case of a scheme under section one of this Act, for enabling any programme which has been submitted to and approved by the appropriate Minister for the purposes of the scheme to be modified from time to time on the application of the person for the time being carrying on the business to which the programme relates ;

- (e) for securing that no payment under the scheme shall be made except subject to such conditions as may be specified in the scheme and in particular (but without prejudice to the generality of the foregoing provisions of this paragraph) unless application therefor is made at the time and in the manner specified in the scheme ;
- (f) for such incidental and supplementary matters as appear to the appropriate Minister to be requisite or expedient for the purposes of the scheme.

(3) A power to make a scheme under any section of this Act shall include power to vary or revoke the scheme by a subsequent scheme under that section :

Provided that a scheme under section one of this Act—

- (a) shall not be varied by the extension of the period specified therein in pursuance of subsection (1) of this section ;
- (b) shall not be so varied or revoked as to reduce or exclude payments thereunder in respect of any programme approved by the appropriate Minister before the coming into operation of the variation or revocation.

(4) Any power to make, vary or revoke a scheme under this Act shall be exercisable by statutory instrument, and no such instrument shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

5.—(1) Where, after the appropriate Minister has approved a programme for the purposes of a scheme under section one of this Act, it appears to him that the programme or a substantial part thereof has been badly carried out, or has been or is being unreasonably delayed, or is unlikely to be completed, or that any condition imposed by virtue of paragraph (e) of subsection (2) of section four of this Act has been contravened or has not been complied with, he may revoke the approval.

Revocation
of approval of
programme
and recovery
of grant.

(2) Before revoking his approval the appropriate Minister—

- (a) shall give to the person who appears to him to be carrying on for the time being the business to which the programme relates a written notification of the reasons for the proposed revocation ; and
- (b) shall afford to that person and, if that person so requests, not more than one other person nominated by him in that behalf an opportunity of appearing before and being heard by a person appointed for the purpose by that Minister, and shall consider the report of the person so appointed, a copy of which shall be supplied by the Minister to the first-mentioned person.

(3) If before the revocation any payment was made by way of grant under the scheme in respect of the programme, the appropriate Minister may recover the payment or so much thereof as he may think fit.

Interpretation. 6.—(1) In this Act, except where the context otherwise requires, the following expressions have the following meanings respectively, that is to say—

“agricultural” and “agricultural land” have the same meanings respectively as in the Agriculture Act, 1947, the Agriculture (Scotland) Act, 1948, or the Agriculture Act (Northern Ireland), 1949, as the case may require ;

“the appropriate Minister” means—

(a) in relation to a scheme made separately for England and Wales or for Northern Ireland, or a joint scheme for England and Wales and Northern Ireland, the Minister of Agriculture, Fisheries and Food ;

(b) in relation to any other joint scheme, the said Minister and the Secretary of State acting jointly ; and

(c) in relation to a scheme made separately for Scotland, the Secretary of State ;

“enactment” includes an enactment of the Parliament of Northern Ireland ;

“small farm business”, in relation to any scheme, means a trade or business consisting in, or such part of any trade or business as consists in, the carrying out of agricultural operations on land comprised in the business, where the amount of that land under crops or grass, excluding any rough grazing land, does not exceed one hundred and fifty acres and the business falls within such other limits as may be specified in the scheme in question.

(2) Save where the context otherwise requires, any reference in this Act to an enactment shall be construed as a reference to that enactment as amended by or under any other enactment.

Expenses.

7.—(1) There shall be defrayed out of moneys provided by Parliament—

(a) all payments under any scheme made under this Act ; and

(b) any other expenses of the Minister of Agriculture, Fisheries and Food or the Secretary of State incurred in pursuance of this Act.

(2) Any sums recovered by the said Minister or the Secretary of State under subsection (2) of section three or subsection (3) of section five of this Act shall be paid into the Exchequer.

8. This Act may be cited as the Agriculture (Small Farmers) Short title Act, 1959.

SCHEDULE

Section 2.

INSTRUMENTS REFERRED TO IN S. 2 (1) (b)

1. The Agricultural Goods and Services (Marginal Production) Scheme (England and Wales), 1953, or that instrument as amended by the Agricultural Goods and Services Schemes (Amendment and Extension) Order, 1954.

2. The Agricultural Goods and Services (Marginal Production) Scheme (England and Wales) Order, 1956.

3. The Agricultural Goods and Services (Marginal Production) Scheme (England and Wales) (Amendment) Order, 1957.

4. The Agricultural Goods and Services (Marginal Production) Scheme (England and Wales) (Amendment) Order, 1958.

5. The following instruments made under the Agriculture Act (Northern Ireland), 1949, that is to say—

(a) The Agricultural Goods and Services (Marginal Production) Regulations (Northern Ireland), 1951 ;

(b) The Agricultural (Marginal Production Seeds and Fertilisers) Scheme (Northern Ireland), 1956 ;

(c) The Agricultural (Marginal Production Seeds and Fertilisers) (Amendment) Scheme (Northern Ireland), 1958 ;

(d) The Agricultural Development (Marginal Land Farm Buildings) Schemes, 1953 to 1957 ;

(e) The Agricultural Development (Fertiliser) Schemes (Northern Ireland), 1953 to 1958.



Table of Statutes referred to in this Act

Short Title	Session and Chapter
Agriculture (Miscellaneous War Provisions) Act, 1940	3 & 4 Geo. 6. c. 14.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Agriculture (Scotland) Act, 1948	11 & 12 Geo. 6. c. 45.
Agriculture (Fertilisers) Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 15.
Agriculture (Ploughing Grants) Act, 1952 ...	15 & 16 Geo. 6 & 1 Eliz. 2. c. 35.

